

Kali Ammal vs Valliyammal

Author: A.Hariprasad

Bench: A.Hariprasad

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT: THE HONOURABLE MR. JUSTICE A.HARIPRASAD
THURSDAY, THE 20TH DAY OF OCTOBER 2016/28TH ASWINA, 1938
RSA.No. 996 of 2009 (B)

AGAINST THE JUDGMENT AND DECREE DATED 11-03-2009 IN AS NO. 201/2004 of
DISTRICT COURT, PALAKKAD

AGAINST THE JUDGMENT AND DECREE DATED 09-06-2004 IN OS NO. 124/1995 of
MUNSIFF'S COURT, CHITTUR

APPELLANTS/APPELLANTS/DEFENDANTS NO.2 & 4:

1. KALI AMMAL, W/O.LATE VELUCHAMI ERAPPA KOUNDER, MALAYANDI KOUNDANNUR,
KOZHIPATHI VILLAGE, CHITTUR TALUK, PALAKKAD DISTRICT.

2. VIJAYALAKSHMI, W/O. THANKAVELU, NALLATH PALAYAM PATTINAM, POLLACHI
TALUK, TAMILNADU.

BY ADVS. SRI.SAJAN VARGHEESE K., SRI.LIJU. M.P

RESPONDENTS/RESPONDENTS/PLAINTIFFS & DEFENDANTS NO. 3 & 5:

1. VALLIYAMMAL, W/O.DORAIRAJ, THANIPALLAM, ELAPPULLI AMSOM, PALAKKAD
TALUK & DISTRICT.

2. DORAISWAMI, S/O. VELUCHAMI ERAPPA KOUNDER, MAJINA NARASIMHAPURAM,
RAMA PATTINAM, POLLACHI TALUK, TAMILNADU.

3. GURURAJ ERAPPA KOUNDER, S/O. VELUCHAMI ERAPPA KOUNDER, DO-DO-
BY ADVS. SRI.JACOB SEBASTIAN, SRI.SUJITH KUMAR T.U.

THIS REGULAR SECOND APPEAL HAVING BEEN FINALLY HEARD ON 20.10.2016, THE
COURT ON THE SAME DAY DELIVERED THE FOLLOWING:

JUDGMENT

A.HARIPRASAD, J.

R.S.A. No.996 of 2009

Dated this the 20th day of October, 2016

The substantial questions of law arising in this second appeal are thus:

- i. Is the finding of the courts below that the plaint schedule property did not form part of the joint family property of deceased Veluchami Erappa Kounder (hereinafter, "Veluchami") legally correct in the light of the available evidence?
- ii. Does the judgment in Chittur Service Co-operative Bank Ltd. v. Kumaran (1992 (1) KLT 216) apply to the facts and circumstances of this case? Does the ratio in the decision have an all pervasive application, regardless of the facts in each case?
- iii. Are the findings by the courts below that marriage between deceased Veluchami and his second wife, the 1st appellant, was not legally valid and she is not entitled to any share in his properties correct?

2. Defendants 2 and 4 in O.S.No.124 of 1995 on the file of the Court of Munsiff, Chittur are the appellants. The plaintiff and other defendants are the respondents.

3. Heard the learned counsel appearing for the appellants and respondents 1 to 3.

4. The suit is one for partition with following averments: The properties belonged to Veluchami. He had married defendants 1 and 2. His first wife (1st defendant) died pending the suit. Her legal representatives are the plaintiff and defendants 3 to 5. No issue was born to Veluchami and his second wife.